



May 13, 2026

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**VIA CERTIFIED MAIL
VIA PUBLIC RECORDS ACT PORTAL**

California High-Speed Rail Authority
Public Records Officer
770 L Street, Suite 620 MS1
Sacramento, CA, 95814

Re: California Public Records Act Request No. 2 of California High Speed Partners
RFP No. HSR25-89 – Track and Systems Construction Contract (“RFP”)
re Kiewit, Stacy Witbeck, Herzog – A Joint Venture’s Proposal

To whom it may concern:

This firm represents California High Speed Partners (“CHSP”), a joint venture of RailWorks and Colas Rail, in connection with the above-referenced procurement. Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), CHSP hereby requests production of the following records from the California High-Speed Rail Authority (the “Authority”) relating to proposer Kiewit, Stacy Witbeck, Herzog – A Joint Venture (“Kiewit”).

These records are requested to evaluate the Authority’s application of procurement requirements across proposers and the resulting evaluation and award process.

I. DEFINITIONS AND INSTRUCTIONS

For purposes of this request:

- “Documents” or “Records” shall include all writings within the meaning of Government Code § 7920.545, including emails, memoranda, notes, draft documents, scoring sheets, and electronic files.
- “Communications” shall include emails, text messages, Teams or other messaging platforms, and written correspondence.
- The relevant time period is **November 26, 2025 through May 15, 2026**, which corresponds to the issuance of the RFP through the Authority’s evaluation and decision-making process for this procurement.

Please produce records in electronic format where available.

II. REQUESTED RECORDS

A. Kiewit Proposal

The complete proposal submitted by Kiewit, including all volumes, attachments, appendices, exhibits and pricing materials. To the extent the Authority contends any portion is exempt, CHSP requests:

- Production of all non-exempt portions
- Redaction rather than withholding in full
- Identification of withheld material with sufficient detail to evaluate the claimed exemption

B. Evaluation, Scoring, and Ranking of Kiewit

All Documents reflecting, referring, or relating to the evaluation, scoring, and ranking of Kiewit's proposal, including but not limited to:

- Individual and consensus scoring sheets
- Technical and price evaluation materials
- Evaluator notes and comments
- Comparative analyses

C. Responsiveness / Compliance Review of Kiewit

All Documents relating to the Authority's determination that Kiewit's proposal:

- Satisfied minimum qualifications and responsiveness requirements
- Did not contain disqualifying deviations

Including but not limited to:

- Checklists
- Internal analyses
- Communications discussing compliance

D. Identified Deficiencies or Deviations

All Documents identifying, discussing, or evaluating:

- Any deficiencies, irregularities, or deviations in Kiewit's proposal
- Consideration of whether such issues were material, immaterial, or waivable

E. Post-Submission Communications with Kiewit

All Communications between the Authority and Kiewit occurring after proposal submission, including but not limited to:

- Requests for clarification
- Requests for additional information
- Discussions, meetings, or correspondence
- Any exchanges relating to proposal revisions or evaluation

F. Negotiation and Award Records

All Documents and Communications relating to:

- Identification of the top-ranked proposer
- Initiation and conduct of negotiations with Kiewit
- Decision-making regarding award

G. Comparative or Cross-Proposer Analyses

All Documents and Communications comparing:

- Kiewit and CHSP proposals
- Relative scores, rankings, or evaluations
- Strengths/weaknesses across proposers

III. PRODUCTION AND RESPONSE

If any portion of a requested record is claimed to be exempt, please:

- Identify the specific exemption(s) claimed;
- Provide a log describing the withheld record(s) sufficient to evaluate the claim; and
- Produce all reasonably segregable non-exempt material.

If you contend any request is unduly burdensome, CHSP is willing to meet and confer regarding scope. Given the time-sensitive nature of this matter, we request rolling production as records are identified.

Thank you for your prompt attention to this matter. Please do not hesitate to contact me should you have any questions.

Sincerely,

COZEN O'CONNOR

By: Gregory Welch